
**OSGOODE HALL LAW SCHOOL
YORK UNIVERSITY**

**Public and Constitutional Law
LW 1800 (Section C)
Final Exam (April 2023)
Professor Kate Berger**

DATE: Tuesday, April 18, 2023

TIME: 1:30 – 3:30 pm

1. This exam consists of 11 pages, including one page of instructions and one page regarding academic honesty. Please ensure that your document is complete.
2. This is an open book exam. During this exam you are not permitted to communicate with anyone about the exam or matters related to this course. (This does not prevent you from communicating with Student Services if necessary.)
3. You will access the exam through the Osgoode Online DropBox (accessed through MyOsgoode (sign into MyOsgoode, click on “Exams and Assignments”, and access the DropBox for our course)). At the conclusion of the exam, please return to the Osgoode Online DropBox to upload your answers.
4. Please submit your answers in PDF format.
5. When you upload your answers, DO NOT USE YOUR NAME; use your WINTER FINAL EXAM NUMBER ONLY. To ensure anonymity, do not identify yourself in any way in your answers.
6. This exam is worth 60% of your final grade, unless you completed the optional assignment, in which case it is worth 25%. It consists of two parts:
 - Part I (Multiple Choice/True or False) is worth TWENTY (20) marks. You should answer TEN (10) of the TWELVE (12) questions. Each answer is worth TWO (2) marks. There is no need to explain or justify your answers. If you answer more questions than required, only the first TEN (10) answers will be marked.
 - Part II (Analysis of a Hypothetical Fact Pattern) is worth EIGHTY (80) marks. There are two questions in Part II and you must answer both questions.
7. Your answers in Part II will be assessed on (a) quality of communication and (b) quality of analysis.
8. It has been such an honour to be part of your first year at Osgoode. Thank you for all you have taught me. I am so looking forward to reading your exams and seeing all that you have learned!

ACADEMIC HONESTY AND REMOTE EXAMS

Students are reminded of the following regarding academic honesty and remote exams, including this exam.

This exam is held remotely from any location that is convenient and accessible to the student. Students remain responsible for complying with their academic and ethical obligations under York University's and Osgoode Hall Law School's academic rules and policies. Students, at all times, must adhere to York University's [Senate Policy on Academic Honesty](#) and:

- Must not discuss the exam with anyone or communicate (in any way including online, verbally, in person, or by expression, etc.) with anyone during the time they are taking the exam, except to contact Student Services staff for technical assistance.
- Students must only use/access the authorized materials as determined by their instructor.
- Must dispose of or otherwise delete or destroy the exam question package at the conclusion of the exam.
- Must provide attribution for any content or material that is not their own. To safeguard against academic dishonesty, exam may be submitted by an instructor or the Administration to software services (e.g. Turnitin) that assist in verifying the originality of work and other academic honesty issues. Students are deemed to have consented to such submission as a condition of writing their exam.

As has been the case in previous terms based on remote examinations/assignments, any suspected failure to comply with the above requirements and/or with any aspect of the Senate Policy on Academic Honesty, including any form of suspected cheating under the Policy, will be thoroughly investigated and addressed under the Policy. Student Services staff and instructors will review the exams and the process closely for any evidence of cheating, plagiarism, collaboration, etc.

Students should be aware that, when a person applies to the Law Society of Ontario Lawyer Licensing Process, the person must answer the following question as part of the Good Character Requirement: "While attending a post-secondary institution, have allegations of misconduct ever been made against you, or have you ever been suspended, expelled or penalized by a post-secondary institution for misconduct".

PART I: MULTIPLE CHOICE/TRUE or FALSE
(20 marks, 30 minutes)

Please answer TEN (10) of the following TWELVE (12) questions. Each answer is worth TWO (2) marks. There is no need to explain or justify your answers. If you answer more questions than required, only the first TEN (10) answers will be marked.

1. **TRUE or FALSE:** A statute that is inconsistent with section 96 of the *Constitution Act, 1867*, will be saved if the constitutional breach is justified.
2. Which of the following is accurate in relation to Parliament's authority to legislate?
 - a. As discussed in *Re Anti-Inflation Act*, [1976] 2 SCR 373, a statute must adequately respond to an established emergency to fall under the emergency branch of the POGG power.
 - b. For a federal statute to be a valid exercise of the POGG power, the pith and substance of the statute must deal with a residual matter of emergent and national concern.
 - c. Parliament has the authority to enact legislation that conflicts with an existing provincial statute.
 - d. Pursuant to the criminal law power in section 91(27) of the *Constitution Act, 1867*, only Parliament has the authority to enact statutes in relation to morality.
 - e. None of the above is accurate.
3. Which of the following is accurate in relation to provincial legislative jurisdiction?
 - a. The provinces are authorized to legislate in relation to any matter that is not expressly listed as part of Parliament's legislative authority in section 91 of the *Constitution Act, 1867*.
 - b. A provincial statute is constitutional as long as it is consistent with the division of powers.
 - c. Section 96 of the *Constitution Act, 1867* only applies to Parliament and therefore provincial statutes need not comply with section 96.

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- d. As seen in *Chatterjee v Ontario*, 2009 SCC 19, a valid provincial law can seek to deter criminal activity and compensate victims of crime without running afoul of Parliament's authority to legislate in relation to the criminal law under section 91(27) of the *Constitution Act, 1867*.
 - e. All the above are accurate.
4. **TRUE or FALSE:** Given the place of section 35 in the constitutional architecture, the rights protected by section 35(1) of the *Constitution Act, 1982* are absolute. A limit on an Aboriginal or treaty right is unconstitutional.
5. Which of the following is/are accurate in relation to section 15 of the *Canadian Charter of Rights and Freedoms*?
- a. Legislative distinctions between groups of people that are based on the enumerated or analogous grounds can be consistent with a commitment to substantive equality.
 - b. A law of general application (i.e. a law that applies to everyone) cannot be the basis of a breach of section 15(1).
 - c. As the Supreme Court predicted in *Corbiere v Canada (Minister of Indian and Northern Affairs)*, [1999] 2 SCR 203, no grounds have yet been found to be analogous to those enumerated in section 15(1).
 - d. The majority in *Fraser v Canada (AG)*, 2020 SCC 28 drew on the reasoning in *Law v Canada*, [1999] 1 SCR 497 to require that a law violate a claimant's human dignity in order to constitute a breach of section 15(1).
 - e. None of the above is accurate.
6. What kinds of evidence must a claimant in a constitutional case introduce to be successful?
- a. When seeking to establish Aboriginal title under section 35(1), the claimant will need to gather historical evidence of the Indigenous community's occupation of the claimed territory before contact with European settlers.
 - b. When challenging a statute as inconsistent with the *Canadian Charter of Rights and Freedoms*, the claimant bears the burden of establishing that the statute constitutes a limit on a *Charter* right or freedom and that the limit is not justified.

- c. When challenging state action as contrary to section 7 of the *Canadian Charter of Rights and Freedoms*, the claimant must establish both the deprivation of life, liberty or security of the person, and that the deprivation is not in accordance with the principles of fundamental justice.
 - d. All the above are accurate.
 - e. Only (a) and (c) are accurate.
7. The *Ontario Education Oversight Act* (“Act”) establishes a new administrative decision-maker, the Ontario Education Oversight Agency (“Agency”). Pursuant to section 3 of the *Act*, the Agency’s mandate is to study education-related matters and make policy recommendations to the Minister of Education. The power to adjudicate disputes between parties on matters of education oversight was delegated to another actor.

Given these facts, which of the following is accurate about the Agency and the *Act*?

- a. Given that the Agency has only a research- and policy-based mandate, the provisions of the *Act* that establish the Agency would be constitutional under the *Residential Tenancies Act* test.
 - b. As an administrative decision-maker, the Agency is subject to procedural obligations only if those obligations are set out by statute and the constitution.
 - c. Because the Agency is an administrative decision-maker, its decisions are not subject to review by the courts unless the decisions are unconstitutional.
 - d. All the above are accurate.
 - e. None of the above is accurate.
8. Given your expertise, a friend asks you to review their notes on section 7 of the *Canadian Charter of Rights and Freedoms* to spot any errors. Your friend indicates that they have proofread the notes carefully and believe there are no lingering errors.

Which of the following statements from your friend’s notes contains an error?

- a. A statute that is overbroad or arbitrary is a breach of section 7.
- b. A limit on section 7 rights can be justified under section 1 of the *Charter*.

- c. As established in *Carter v Canada*, 2015 SCC 5, the right to life in section 7 is engaged not only when a law or state action causes death but also when a law or state action increases the risk of death, whether directly or indirectly.
 - d. There are no errors in the above statements.
 - e. Only (a) and (b) are errors.
9. **TRUE or FALSE:** According to *Tsilhqot'in Nation v British Columbia*, 2014 SCC 44, the doctrine of interjurisdictional immunity cannot serve as the basis of a constitutional challenge to provincial legislation that has an impact on Aboriginal rights, including Aboriginal title.

10. In the *Senate Reform Reference*, 2014 SCC 32 at para 26, the Supreme Court explains:

"...the Constitution should be viewed as having an 'internal architecture', or 'basic constitutional structure'... The notion of architecture expresses the principle that '[t]he individual elements of the Constitution are linked to the others, and must be interpreted by reference to the structure of the Constitution as a whole'... In other words, the Constitution must be interpreted with a view to discerning the structure of government that it seeks to implement. The assumptions that underlie the text and the manner in which the constitutional provisions are intended to interact with one another must inform our interpretation, understanding, and application of the text."

Which of the following is consistent with the Court's reasoning in this passage?

- a. The architecture of the Canadian constitution comprises the pieces of the constitution, as linked together by the *Canadian Charter of Rights and Freedoms* and the doctrine of federalism.
- b. The Constitution of Canada provides for a structure of government that is unknowable.
- c. The constitution is best understood when read holistically, rather than as discrete, independent provisions.
- d. Structural interpretation is a valid form of interpretation in Canadian constitutional law.
- e. Only (c) and (d) are accurate.

11. As part of your volunteer work, you are asked by a local high school to prepare a trivia game that will help students learn about, and test their knowledge of, the constitution. One part of your game asks students to “explain the error” in a statement about the constitution. The first statement for which students are asked to explain the error is: “Canada’s constitution doesn’t change”.

Which of the following explains a way in which the statement is wrong?

- (a) “One way by which Canada’s constitution changes is through judicial interpretation. Look at the law on section 15(1), for example. The meaning of section 15(1), and how to successfully establish a breach of section 15(1), have changed multiple times since the Supreme Court’s decision in *Andrews v Law Society of British Columbia*, [1989] 1 SCR 143.”
- (b) “Wrong! One way in which the constitution changes is through the operation of the unwritten principles. For example, unwritten principles can be the basis for new doctrines that fill silences in the constitutional text”.
- (c) “The text of Canada’s constitution can change by virtue of the processes set out in Part V of the *Constitution Act, 1982*”.
- (d) “Doesn’t change?!? Of course it does. Before 1982, there was no express protection of Aboriginal or treaty rights in the text of the constitution. And now look at section 35!”
- (e) All the above capture ways in which Canada’s constitution has changed or can change.

12. The unwritten constitutional principles are:

- a. Not listed in section 52(2) of the *Constitution Act, 1982* but remain part of Canada’s constitution.
- b. Reflected in provisions of the text of the Constitution of Canada.
- c. Available to assist in constitutional interpretation.
- d. Underlie the architecture of the constitution.
- e. All the above are features of the unwritten principles of Canada’s constitution.

PART II: ANALYSIS OF HYPOTHETICAL FACT PATTERN
(80 marks, 1 hour 30 minutes)

Enlightenment Academy (“Academy”) is a new, and a new kind of, post-secondary institution in Ontario. It was established in January 2022 with the passage of the *Enlightenment Academy Act*, RSO 1990, c KB-1L (“EA Act”). The Academy grants both university degrees and college diplomas, as defined and regulated by the *Post-Secondary Education Act*, RSO 1990, c KB-1800 (“PSE Act”). It has no formal programs – each student designs their own curriculum in pursuit of answering one of life’s grand questions. Indeed, in the first year of enrolment at the Academy, each student strives to identify the question around which the remainder of their studies will be designed. Some of the students entering their second year at the Academy are seeking to answer questions like, “What is love?”, “When will the world end?”, and “How do we know what’s real?”.

To be accredited to grant degrees and diplomas, section 3 of the PSE Act requires that a post-secondary education institution adopt and comply with a Core Mandate Statement that is approved by the Minister of Post-Secondary Education. The Academy’s Core Mandate Statement, as approved by the Minister, provides that the Academy is committed to:

- (a) Offering uniquely flexible post-secondary education programs that are designed to serve the needs and aspirations of each individual student;
- (b) Ensuring that the Academy’s operations and activities are carried out in a way that reflects the Academy’s guiding principle, namely that education should serve the ideals of reason, science, philosophy, and secularism; and
- (c) Fostering a campus community that is inclusive and open for all to participate.

As set out in section 4 of the EA Act, the Academy is governed by an “Un-board of Governors” (“Un-board”). The Un-board comprises fifteen (15) people who are responsible for all aspects of the Academy’s affairs, from the strategic planning to the budget to the hiring of staff. The members of the Un-board are elected for renewable terms of five (5) years by individuals with an interest in the operations of the Academy. The individuals who are eligible to vote include all current and former students, faculty, and staff of the Academy; all residents of Tobermory, Ontario, where the Academy is located; all members of the Tobermory City Council; and all members of the Ontario Provincial Legislature. In the first election of Un-board members, twenty-five (25) people ran for a position on the fifteen (15) member body.

Section 5 of the EA Act requires that all decisions of the Un-board be made by consensus. There is no Chairperson of the Un-board. When consensus cannot be reached on any decision the Un-board must make, section 6 of the EA Act provides that the Un-board must ask the Minister of Post-Secondary Education to appoint a government mediator, arbitrator, or other alternative

dispute resolution professional to assist the Un-board in reaching consensus. Since it was established, the Academy's Un-board members have been unable to reach consensus in ninety percent (90%) of their decisions and have had to ask for assistance from the Minister.

Section 7 of the EA Act requires that the Un-board adopt a set of "Governing Policies" that prescribe the operating principles and standards for the Academy. These Policies must be approved by the provincial Cabinet before coming into force. Once in force, the Policies must be made publicly available to all people who are subject to them. Policy 1, called "Policy 1: Standards of Conduct for Community Members of the Academy", sets out a code of conduct that governs all Academy activities and all people carrying out activities as a member of the Academy community. Section 1 of Policy 1 is entitled "Guiding Principle". It states, "Providing a secular post-secondary education that serves the ideals of reason, science, and philosophy is the most noble of all public pursuits". Section 21 of Policy 1 has the heading "Secularism and Neutrality". Section 21 provides: "The Academy believes unreservedly in rationality and science. In accordance with the Guiding Principle set out in this Policy, all activities undertaken by and at the Academy must be both secular and neutral. No Academy activity is permitted to include any religious or spiritual dimension or practice".

In January 2023, a group of Indigenous students at the Academy established the Indigenous Students' Association ("ISA"). The ISA applied for, and received, official student association status from the Un-board. As set out in Policy 2, "Policy on Academy Organizations and Associations", this official status entitled the ISA to a standard amount of annual funding from the Academy, along with office space and the authority to book gathering spaces and hold events.

Among many other activities and initiatives, the ISA endeavoured to hold biweekly meetings of its membership. All members of the Academy community were invited to attend the meetings and these invitations were circulated by email, poster, social media, Academy online bulletins, and word-of-mouth.

Each meeting of the ISA begins by acknowledging the land on which the Academy sits and on which the meeting is held. The President of the ISA then opens the meeting with a smudging ceremony. When there are new attendees at the meeting, the President explains the ceremony beforehand. The explanation is always the same: "Smudging is an ancient and traditional sacred practice that 'connects people to the Creator and is a way to gain spiritual protection, receive blessings from the Creator, and improve spiritual health. The smoke created by burning medicines purifies the body, soul and brings clarity to the mind'¹."

¹ I am grateful to the Seven Generations Education Institute for providing this description of smudging. See The Seven Generations Education Institute, "Learn how to smudge" (September 23, 2021), online: <<https://www.7generations.org>>.

Linus Lieka is a student at the Academy. He is not a member of the ISA. On March 1, 2023, after seeing one of the ISA's posters inviting everyone to its meetings, Linus attended the ISA's biweekly meeting. Upon hearing the opening remarks of the meeting, Linus immediately wrote an email to un-boardfeedbackline@gmail.com. The email read:

The ISA begins its meetings with a prayer ceremony. This is a clear violation of Policy 1. I thought the Academy was committed to secular education. It's one of the primary reasons I chose the Academy. How is this permitted?

On March 3, 2023, the President of the ISA received a letter from the Un-board stating:

Dear Members of the ISA,

We have recently learned that the ISA begins each of its meetings with a religious ceremony. Religious and spiritual practices are not permitted in any Academy activities, as set out in section 21 of Policy 1. Section 21 prohibits all such practices on campus. This prohibition reflects the Academy's firm commitment to providing all students with a secular educational environment. This is part of the Academy's Core Mandate, as approved by the Ministry of Post-Secondary Education, and reflects the Academy's belief that knowledge and enlightenment – the goals of post-secondary education – are best pursued through science rather than religion or spirituality. Further, Section 21's prohibition is in service of promoting inclusivity and openness, two principles that are also part of the Academy's Core Mandate. By removing religious practices from campus spaces and activities, each member of the Academy can freely participate in the neutral space. We guarantee this openness and neutrality to all our community members, and it is a meaningful reason why many students pursue studies at the Academy.

As a result of this breach of Policy 1, the ISA's official status as a student association has been revoked, along with all benefits that accompany such status. Such status can be reinstated after a period of two years upon application to the Un-board and demonstration that the prohibited activities will not be repeated.

Sincerely,

The Un-board

Upon receiving this letter, the ISA held an emergency members-only meeting. The minutes of the meeting record the following comments from members:

- "This is devastating. Smudging connects me to this land on which we study and learn and pursue truth. It is part of learning. How can it possibly be prohibited?!"

- “How can the ISA carry out its mandate of establishing safe and open space for Indigenous students to gather if we cannot be ourselves and practice our beliefs?”.
- “Smudging is one of the traditions I have always followed at every gathering, to ask the Creator to cleanse and protect those who have gathered. I’m just supposed to abandon that?”
- “The purpose of smudging cannot be replicated or replaced with another practice. That’s why it’s sacred”.
- “They can’t do this. Section 21 of Policy 1?! Because of one policy, I have to choose between my beliefs and getting an education on my traditional territory, close to my family and community?! How can this still be happening in 2023?!”

QUESTIONS REGARDING THE FACT PATTERN

The President of the ISA comes to you for legal advice. She is wondering whether there are grounds to successfully challenge the constitutionality of section 21 of Policy 1 as an unjustified limit of section 2(a) of the *Canadian Charter of Rights and Freedoms*. To provide the advice that is being sought, please answer **BOTH** the following two questions:

1. Does the *Canadian Charter of Rights and Freedoms* apply to Enlightenment Academy’s enactment of Section 21 of Policy 1? **(30 marks, 35 minutes)**
2. Assuming the *Canadian Charter of Rights and Freedoms* applies, could the President of the ISA successfully challenge the constitutionality of section 21 of Policy 1 as an unjustified limit of section 2(a)? **(50 marks, 55 minutes)**

Please fully explain your reasoning.